

Amendment No. 1 to HB1038

Farmer
Signature of Sponsor

AMEND Senate Bill No. 992*

House Bill No. 1038

by inserting the following new section immediately preceding the last section and renumbering the subsequent section accordingly:

SECTION _____. Tennessee Code Annotated, Section 37-1-153, is amended by adding the following as a new subsection:

(g)

(1) Notwithstanding this section or another law to the contrary, all files and juvenile court records in a delinquency proceeding under this part, including medical reports, psychological evaluations, and any other document, relating to a person must be opened to public inspection and their content subject to disclosure to the public if:

(A) The person has committed a homicide on the grounds of a school, as defined in § 39-13-114(a); provided, however, that this subdivision (g)(1) does not require the person to have been adjudicated delinquent for or convicted of a homicide offense in order for the person's records to be open to public inspection; and

(B) The person is deceased.

(2) Any information in a file or juvenile court record that directly or indirectly identifies another juvenile must be redacted.